

Present

Mr. Justice Sheikh Abdul Awal

Criminal Appeal No. 4963 of 2015

Raju Ahmed

.....Convict-appellant.

-Versus-

The State and another

.....Respondent.

Md. Abdul Kader Bhuiyan, Advocate

.....For the convict-appellant.

Ms. Shahida Khatoon, D.A.G with

Ms. Sabina Perven, A.A.G with,

Ms. Koheenoor Akter, A.A.G.

..... For the respondent No.1

Mr. Rezbaul Kabir, Advocate.

..... For the respondent No.2

Heard and Judgment on 14.01.2024.

Sheikh Abdul Awal, J:

This Appeal at the instance of convict appellant, Raju Ahmed is directed against the impugned judgment and order of conviction and sentence dated 08.06.2015 passed by the learned Additional Sessions Judge, Chandpur in Sessions Case No. 51 of 2013 arising out of C.R. Case No. 235 of 2012 (Faridgonj) convicting the accused-appellant under Section 138 of the Negotiable Instrument Act, 1881 and sentencing him thereunder to suffer simple imprisonment for

a period of 6(six) months and to pay a fine of Tk. 5,50,000/- (five lakhs and fifty thousand) only.

Today this criminal appeal appeared in the list for pronouncement of judgment.

Today Mr. Md. Abdul Kader Bhuiyan, the learned Advocate appearing for the convict appellant having realized the difficulties submits that he does not want to press the appeal on merit. He adds that a direction may be given to the trial Court below to acquit the convict appellant if the convict appellant deposits rest money amounting to Tk. 2,50,000/- (two Lac fifty thousand) within 06 (six) months from today.

Ms. Shahida Khatoon, the learned Deputy Attorney General, on the other hand, does not oppose the prayer of the learned Advocate for the convict appellant.

In view of the above the trial Court is directed to allow the convict appellant to deposit rest money amounting to Tk. 2, 50,000/- (two Lac fifty thousand) within 6 months from today, if the convict appellant deposits the rest cheque's amount within 06(six) months from today the trial Court concerned may acquit the convict appellant from the charge as levelled against him, as prayed for.

The complainant-respondent No.2 is permitted to withdraw half of the cheque's amount as deposited in the trial Court by the convict-appellant for the purpose of

preferring this Criminal Appeal. If the convict appellant fails to deposit rest cheque's amount within 06(six) months from today the trial Court concerned shall take necessary steps to secure arrest against him.

The appeal is accordingly, dismissed in the above manner.

Send down the lower Court records at once.